

Line 6

Case Name: *Andrew Perez v. Accenture LLP, et al.*

Case No.: 25CV471230

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Accenture LLP (“Defendant” or “Accenture”) moves to compel arbitration and stay this civil action pending completion of the arbitration based on the binding agreement of Plaintiff Andrew Perez (“Plaintiff”) to arbitrate all legal claims and disputes arising from or related to Plaintiff’s employment with Accenture. Notice of Motion (the “Motion”) at 2:5-18 (filed Nov. 19, 2025).

The Motion came on for hearing on June 12, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

Plaintiff Andrew Perez (“Plaintiff”) was offered an opportunity to join Accenture LLP (“Defendant”) as a Content Review Associate on February 3, 2020. (Declaration of Patricia Gonzalez at ¶ 7.) Defendant sent Plaintiff a zip folder of documents including an Offer Letter, Arbitration Agreement, Conditions of Employment, Intellectual Property Agreement, and other key documents. (*Ibid.*) Plaintiff was required to sign these documents as a condition of his employment. (Declaration of Shelby Burroughs [“Burroughs Decl.”], Ex. A.) Plaintiff electronically signed these documents, including the Arbitration Agreement, on February 3, 2020. (*Ibid.*) Plaintiff commenced employment on April 1, 2020. (Burroughs Decl. at ¶ 7.)

Plaintiff went on paternity leave between October through November 2022. (Complaint at ¶ 13(b).) Plaintiff alleges that “[a]lthough he was allowed to take eight weeks of paternity leave, he only took four weeks of paternity leave due to pressure to return to work by defendant.” (*Ibid.*) In mid-November, Plaintiff noticed that he was not receiving paternity leave pay. (Complaint at ¶ 13(c).) Plaintiff received payment for paternity leave only after complaining to Human Resources. (*Id.* at ¶¶ 13(d), (e).) Upon returning to work, Plaintiff was placed on a Performance Improvement Plan (“PIP”) as he was accused of receiving complaints from clients. (*Id.* at ¶ 13(e).) Plaintiff complained to Human Resources that he believed the PIP was issued in retaliation. (*Ibid.*) Plaintiff was subsequently removed from his work team and relocated to another position. (Complaint at 13(f).)

Plaintiff again went on paternity leave between February 5, 2024 to April 1, 2024. (Complaint at ¶ 13(h).) While on leave, Plaintiff was notified that he had been removed

from his team. (*Ibid.*) Plaintiff alleges that he “believed this was yet another example of retaliation, as he was unaware of anyone else being removed who had not taken paternity leave.” (*Ibid.*) Plaintiff complained to Human Resources, but no investigation was conducted. (Complaint at ¶ 13(i).) Instead, he was told that he would be required to either resign and receive severance, secure a new project within eight weeks, or face termination with severance. (*Ibid.*) Plaintiff was unable to secure a new position. (*Ibid.*) In or around April 2024, Plaintiff was informed that he was being terminated effective June 3, 2024. (Complaint at ¶ 14.)

Plaintiff filed this civil action on July 23, 2025, bringing twelve causes of action for (1) violation of California Family Rights Act (“CFRA”); (2) hostile work environment in violation of the Fair Employment and Housing Act (“FEHA”); (3) retaliation in violation of FEHA; (4) failure to prevent discrimination, harassment, or retaliation in violation of FEHA; (5) negligent hiring, supervision, and retention; (6) wrongful termination in violation of public policy; (7) intentional infliction of emotional distress; (8) discrimination in violation of FEHA; (9) breach of express oral contract not to terminate employment without good cause; (10) breach of implied-in-fact contract not to terminate employment without good cause; (11) whistleblower retaliation; (12) failure to hire in violation of FEHA.

Defendant now moves to compel arbitration of these claims under the Arbitration Agreement (“the Agreement”) executed by Plaintiff on February 3, 2020. Plaintiff argues that arbitration is precluded by the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 (“EFAA”) and because the Agreement is unconscionable.

Having carefully considered the parties’ arguments, the Court agrees with Defendant and GRANTS the motion for the reasons explained below. The Court further grants Defendant’s Request for Judicial Notice of the excerpted American Arbitration Association Employment/Workplace Arbitration and Rules and Mediation Procedures attached as Exhibits 1 to 3 pursuant to Evidence Code section 452, subdivision (h). The Court also grants Plaintiff’s Request for Judicial Notice of Exhibits 4 through 9 pursuant to Evidence Code section 452, subdivisions (c) and (d) because these exhibits constitute legislative acts and court records.

Legal Standard on Motion to Compel Arbitration

Defendant argues that the Federal Arbitration Act (“FAA”) governs the Arbitration Agreement based on the language of the Agreement and because its operations affect interstate commerce. The Agreement states, “[t]his Agreement is governed by the Federal Arbitration Act (the ‘FAA’) (9 U.S.C. §§ 1 et seq.) . . .” (Burroughs Decl., Ex. B.) In any event, “[e]mployment contracts, except for those covering workers engaged in transportation, are covered by the FAA.” (*EEOC v. Waffle House, Inc.* (2002) 534 U.S. 279, 289.)

Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207

F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Analysis of the Motion

As an initial matter, the Court finds that the parties entered into an agreement to arbitrate. Defendant has attached a copy of the Arbitration Agreement electronically signed by Plaintiff on February 3, 2020. (See Burroughs Decl., Ex. B.) (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165 [noting that it is a moving party’s burden to produce prima facie evidence of an agreement to arbitrate by attaching the agreement to the motion].) Plaintiff’s electronic signature has the same legal effect as a handwritten signature and is express acceptance of an agreement to arbitrate. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060; *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777.) Defendant has set forth the procedures undertaken to authenticate Plaintiff’s signature in the Declaration of Pricilla Gonzalez. Plaintiff does not dispute that he signed the Agreement. To the extent Plaintiff argues he did not understand the legal significance of the Agreement when he signed it, “[a]n arbitration clause within a contract may be binding on a party even if the party never actually read the clause.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) The general rule is that “one who assents to a contract is bound by its provisions and cannot complain of unfamiliarity with the language.” (*Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 383.)

Moreover, the Court finds that the broad scope of the Agreement covers all of Plaintiff’s claims in this civil action. The Agreement applies to “all disputes, controversies and claims arising out of or relating to Your employment with Accenture Flex or Your separation from employment, that Accenture Flex may have against You or that You may have against Accenture Flex and/or against any of its officers, directors, employees or agents in their capacity as such (‘Covered Claims’).” (Burroughs Decl., Ex. B at ¶ 2.) Covered Claims include “discrimination and retaliation, and any other federal, state and local laws regarding employment” as well as claims for breach of contract and claims for breach of post-employment restrictive covenants. (*Ibid.*) Plaintiff has sued Defendant for hostile work environment, retaliation, wrongful termination, and failure to prevent discrimination in violation of FEHA, as well as breach of contract, among other claims. Plaintiff’s claims arise out of his employment with Defendant and concern his paternity leave and separation from employment.

In Opposition Plaintiff argues that, even if the Agreement covers all of Plaintiff’s claims, the EFAA applies to bar arbitration of his claims.

The EFAA Does Not Cover Plaintiff’s Claims

The EFAA provides that “at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute . . . no predispute arbitration agreement . . . shall be valid or enforceable with respect to a case which is filed under

Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.” (9 U.S.C. § 402, subd. (a).) Additionally, the EFAA provides that its applicability “shall be determined under Federal law.” (9 U.S.C. § 403, subd. (b).) “There is a split among federal district courts in and outside the Ninth Circuit about the appropriate standard for determining ‘the allegations that are necessary to invoke the EFAA in the first place and to determine whether the statute is applicable to the case.’” (*MacKay v. PetSmart, Inc.* (C.D. Cal. Dec. 2, 2025) 2025 U.S. Dist. LEXIS 168963 [citing *Diaz-Roa v. Hermes Law, P.C.* (S.D.N.Y. 2024) 757 F.Supp. 3d 498 (*Diaz-Roa*)].) Some courts have relied on the pleading standard set forth under Federal Rule of Civil Procedure 12(b)(6) for failure to state a claim, while others have relied on the plausibility standard. (*Van De Hey v. EPAM Sys.* (N.D.Cal. Feb. 28, 2025) 24-cv-08800-RFL, 2025 U.S. Dist. LEXIS 48775 at p. 8 (*Van De Hey*).) Under the plausibility standard, a plaintiff need only “plead nonfrivolous claims relating to sexual assault or to conduct alleged to constitute sexual harassment, with the sufficiency of those claims to be reserved for proper merits adjudication.” (*Diaz-Roa, supra*, 757 F.Supp.3d at p. 533.) The Court adopts the more stringent plausibility standard.

Gov. C. § 12940(j)(1) prohibits “harassment” based upon “sex” or “sexual orientation.” “Courts have recognized two theories of actionable sexual harassment under FEHA. The first is quid pro quo harassment, where a term of employment is conditioned upon submission to unwelcome sexual advances. The second is hostile work environment, where the harassment is sufficiently pervasive so as to alter the conditions of employment and create an abusive work environment.” (*Mokler v. County of Orange* (2007) 157 Cal.App.4th 121, 141 [internal quotation marks and citations omitted].) Plaintiff alleges harassment based on a hostile work environment.

To establish a prima facie case of a hostile work environment, Plaintiff must show “that (1) [plaintiff] is a member of a protected class; (2) [plaintiff] was subjected to unwelcome harassment; (3) the harassment was based on [plaintiff’s] protected status; (4) the harassment unreasonably interfered with [plaintiff’s] work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment.” (*Ortiz v. Dameron Hospital Assn.* (2019) 37 Cal.App.5th 568, 581.) In sum, “[a] claim for hostile environment sexual harassment exists under the FEHA where the plaintiff was subject to unwelcome conduct or comments because of his or her sex and the result was harassment so severe or pervasive that the conditions of plaintiff’s employment were altered.” (*Pantoja v. Anton* (2011) 198 Cal.App.4th 87, 114.)

To be sure, “[s]exually harassing conduct need not be motivated by sexual desire.” (Gov’t Code § 12940, subd. (j)(4)(C); see *Taylor v. Nabors Drilling USA, LP* (2014) 222 Cal.App.4th 1228, 1240 [“California courts have recognized that a sexual motive or interest is not required for sexual harassment under the FEHA.”]; *Pantoja, supra*, 198 Cal.App.4th at p. 114; *Singleton v. United States Gypsum Co.* (2006) 140 Cal.App.4th 1547, 1564.) “In every case, however, the plaintiff must show a discriminatory intent or motivation based on gender.” (*Pantoja, supra*, 198 Cal.App.4th at p. 114.) Although sex discrimination and sexual harassment are distinct causes of action, FEHA still “regard[s] the prohibition against sexual harassment part and parcel of the proscription against sexual discrimination.” (*Lyle v. Warner Brothers Television Productions* (2006) 38

Cal.4th 264, 278.)

“Whether the conduct of the alleged harassers was sufficiently severe or pervasive to create a hostile or abusive working environment depends on the totality of the circumstances. “These may include the frequency of the discriminatory conduct; its severity; whether it is physically threatening or humiliating, or a mere offensive utterance; and whether it unreasonably interferes with an employee’s work performance.’ [Citations.] ‘Common sense, and an appropriate sensibility to social context, will enable courts and juries to distinguish between simple teasing or roughhousing...and conduct [that] a reasonable person in the plaintiff’s position would find severely hostile or abusive.’ [Citations.]” (*Rehmani v. Super. Ct.* (2012) 204 Cal.App.4th 945, 951-952.)

“A single incident of harassing conduct is sufficient to create a triable issue regarding the existence of a hostile work environment if the harassing conduct has unreasonably interfered with the plaintiff’s work performance or created an intimidating, hostile, or offensive working environment. In that regard, the Legislature hereby declares its rejection of the United States Court of Appeals for the 9th Circuit’s opinion in *Brooks v. City of San Mateo* (2000) 229 F.3d 917 and states that the opinion shall not be used in determining what kind of conduct is sufficiently severe or pervasive to constitute a violation of the California Fair Employment and Housing Act.” (Gov’t Code, § 12923, subd. (b); see *Beltran v. Hard Rock Hotel Licensing, Inc.* (2023) 97 Cal.App.5th 865, 880 [criticizing older cases requiring concerted and repeated pattern of harassment to create a hostile work environment in summary judgment context].)

Here, Plaintiff does not allege any unwelcome comments made about him taking paternity leave. Instead, the conduct Plaintiff alleges includes that he was pressured to take less leave, denied pay, placed on a PIP, removed from his team, and eventually terminated. (Complaint at ¶¶ 13(b)-(i), 14.) The Court finds that these actions amount to no more than personnel decisions which do not come within the meaning of harassment.

As put by the Second Appellate District Court of Appeal in *Janken v. GM Hughes Electronics*:

We conclude, therefore, that the Legislature intended that commonly necessary personnel management actions such as hiring and firing, job or project assignments, office or work station assignments, promotion or demotion, performance evaluations, the provision of support, the assignment or nonassignment of supervisory functions, deciding who will and who will not attend meetings, deciding who will be laid off, and the like, does not come within the meaning of harassment. These are actions of a type necessary to carry out the duties of business and personnel management. These actions may retrospectively be found discriminatory if based on improper motives, but in that event the remedies provide by the FEHA are those for discrimination, not harassment. Harassment by contrast, consists of actions outside the scope of job duties which are not of a type necessary to business and personnel management. This significant distinction underlies the differential treatment of harassment

and discrimination in the FEHA.

(*Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 64-65.). Likewise here, Plaintiff may later show that these actions were discriminatory. However, this conduct does not state a claim for harassment because decisions such as placing Plaintiff on a PIP or removing him from his team are acts within the scope of job duties necessary to do business and personnel management. Plaintiff does not complain of actions such as “verbal epithets, derogatory comments, physical interference with freedom of movement” that are outside the scope of job duties and would otherwise constitute harassment. (*Id.* at p. 63.) Thus, the EFAA does not apply in the absence of a plausible sexual harassment claim. And as the EFAA does not apply here, it does not bar arbitration of Plaintiff’s claims here.

The Arbitration Agreement is Not Unconscionable

Plaintiff maintains that the Arbitration Agreement is unenforceable because it is both procedurally and substantively unconscionable. The party challenging a contractual arbitration provision bears the burden of proving that it is both procedurally and substantively unconscionable. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126 (*OTO*).) This may be done on a sliding scale, where the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required, and vice versa. (*Id.* at pp. 125-126.) Nevertheless, both must be shown. Procedural unconscionability focuses on oppression or surprise to the “weaker” party based on unequal bargaining power, whereas substantive unconscionability focuses on the terms of the agreement and whether they are overly harsh or one-sided. (*OTO, supra*, 8 Cal.5th at pp. 125-129.) The Court thus proceeds to consider whether the Agreement is procedurally and substantively unconscionable.

The Agreement is not procedurally unconscionable.

The factors that the court examines to determine whether there was “oppression” in the signing of an agreement generally include: “ ‘(1) the amount of time the party is given to consider the proposed contract; (2) the amount and type of pressure exerted on the party to sign the proposed contract; (3) the length of the proposed contract and the length and complexity of the challenged provision; (4) the education and experience of the party; and (5) whether the party’s review of the proposed contract was aided by an attorney.’ ” (*OTO, supra*, 8 Cal.5th at pp. 126-127 [quoting (*Grand Prospect Partners, L.P. v. Ross Dress for Less, Inc.* (2015) 232 Cal.App.4th 1332, 1348].)

The Agreement here is a stand-alone six-page document that calls out the jury waiver in bold letters. (Burroughs Decl., Ex. B at ¶ 1.) Plaintiff maintains he was not given an opportunity to negotiate the terms of the Agreement and that he signed the Agreement as soon as possible “so as not to delay acceptance of the job offer.” (Opposition at p. 3:13-14; Declaration of Andrew Perez [“Perez Decl.”] at ¶ 5.) He did not consult with an attorney prior to signing the Agreement. (Perez Decl. at ¶ 6.) Nevertheless, while Plaintiff was required to sign the Agreement as a condition of employment, “the cases uniformly agree that a compulsory predispute arbitration

agreement is not rendered unenforceable just because it is required as a condition of employment or offered on a ‘take it or leave it’ basis.” (*Lagatree v. Luce* (1999) 74 Cal.App.4th 1105, 1127.)

Having carefully weighed all the relevant factors, circumstances, and terms of the Agreement, the Court finds that the Agreement is not procedurally unconscionable.

The Agreement is not substantively unconscionable.

Substantive unconscionability focuses on the actual terms of the agreement and evaluates whether they create overly harsh or one-sided results. (*Armendariz Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114 (*Armendariz*).) The court assesses whether the agreement reallocates risks in an objectively unreasonable or unexpected matter. (*Jones v. Wells Fargo Bank* 112 Cal.App.4th 1527, 1539.) “In assessing substantive unconscionability, the paramount consideration is mutuality.” (*Pinela v. Neiman Marcus Group, Inc.* (2015) 238 Cal.App.4th 227, 241 [internal citation and quotation marks omitted].) Arbitration agreements are substantively unconscionable where they lack a “modicum of bilaterality,” “without at least some reasonable justification for such onesidedness based on ‘business realities.’” (*Armendariz, supra*, 24 Cal.4th at p. 117.)

Armendariz instructs that there are “five minimum requirements for the lawful arbitration of such rights pursuant to a mandatory employment arbitration agreement. Such an arbitration agreement is lawful if it ‘(1) provides for neutral arbitrators, (2) provides for more than minimal discovery, (3) requires a written award, (4) provides for all of the types of relief that would otherwise be available in court, and (5) does not require employees to pay either unreasonable costs or any arbitrators’ fees or expenses as a condition of access to the arbitration forum. Thus, an employee who is made to use arbitration as a condition of employment “effectively may vindicate [his or her] statutory cause of action in the arbitral forum.” ’ ” (*Armendariz, supra*, 24 Cal.4th at p. 102.)

The Arbitration Agreement satisfies these factors. As Defendant notes, the Agreement adopts and incorporates the American Arbitration Association’s Employment Arbitration Rules and Mediation Procedures (“AAA Rules”). (Burroughs Decl., Ex. B at ¶ 6(a).) The Arbitration Agreement provides that arbitration shall be “held before a single neutral arbitrator, selected in accordance with the Rules.” (*Ibid.*) Discovery is permitted under Rule 21 of the AAA Rules, which provides “[t]he arbitrator shall manage any necessary exchange of information among the parties, including depositions, interrogatories, document production, or other means” (Accenture Request for Judicial Notice, Ex. 2.) Rule 45 further requires the arbitrator to issue a written award the Agreement mandates that the arbitrator may award remedies that would otherwise be available in court. (Accenture Request for Judicial Notice, Ex. 3; Burroughs Decl., Ex. B at ¶ 6(c).) The Agreement does not impose unreasonable costs on Plaintiff and provides, “[y]ou will pay to the AAA only that portion of the arbitration filing fee that is equal to the amount you would be required to pay to initiate a lawsuit in the applicable state or federal court, including if you are unable to pay the arbitration filing fee. Accenture will pay the remainder of the arbitration administrative fees, the arbitrator’s fees and costs, and any

other fees or costs unique to arbitration.” (Burroughs Decl., Ex. B at ¶ 6(d).) The Agreement, therefore, complies with *Armendariz*.

Plaintiff argues the Agreement lacks mutuality because it only applies to Plaintiff’s claims and exempts Defendant’s claims from arbitration. As noted by Defendant, however, Accenture is also required to arbitrate claims that only it would bring against an employee such as “claims for breach of post-employment restrictive covenants . . . claims for fraud or misappropriation, claims for misappropriation of trade secrets.” (Burroughs Decl., Ex. B at ¶ 2.) Moreover, both parties are prohibited from arbitrating certain claims such as patent, copyright, or trademark. (*Riley v. N.Y. Film Acad., Ltd.* (C.D. Cal. Dec. 6, 2016) CV-16-7549-MWF (JCx), 2016 U.S. Dist. LEXIS 204517 at *9-10 [noting that the agreement excluded both parties’ claims related to trade secret, patent, copyright, and trademark and did not lack mutuality].) Nothing prevents Plaintiff from seeking “comparable protection for [his] personal information during arbitration proceedings, as circumstances may warrant.” (*Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1250.)

Plaintiff also argues the Agreement’s injunctive relief carve-out is substantively unconscionable because “an employee rarely, if ever, has cause to seek injunctive or equitable relief against their employer.” (Opposition at p. 6:22-23.) Nevertheless, the Agreement is bilateral in that it provides “[e]ither You or Accenture Flex may seek and obtain from a court any injunctive or equitable relief (*e.g.* a temporary restraining order or preliminary injunction) necessary to maintain (and/or restore) the status quo or to prevent the possibility of irreversible or irreparable harm pending final resolution of arbitration or court proceedings as applicable.” (Burroughs Decl., Ex. B at ¶ 5.) When an injunctive relief carve-out provision applies equally to both parties, that “dictates against a finding of substantive unconscionability” unless it can be shown that the end result is “overly harsh, unduly oppressive, or unreasonably favorable” to the other party. (*Borgarding v. JPMorgan Chase Bank* (C.D. Cal. Oct. 31, 2016) CV 16-2485 FMO (RAOx) 2016 U.S. Dist. LEXIS 191612 at *22.) Plaintiff has not demonstrated that the end result is overly harsh, unduly oppressive, or unreasonable favorable to Defendant. Therefore, the Court does not find this term to be substantively unconscionable.

Last, Plaintiff argues that the Agreement’s PAGA waiver is substantively unconscionable. The Agreement provides, “[n]either You nor Accenture Flex is permitted to bring Covered Claims on a class, collective, consolidated or representative basis.” (Burroughs Decl., Ex. B at ¶ 4.) In *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639, 644-645, the United States Supreme Court left the holding of *Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348, 380 undisturbed that a blanket PAGA waiver is unconscionable under California law. (See *Alberto, supra*, 91 Cal.App.5th at p. 494; see also *Adolph v. Uber Technologies* (2023) 14 Cal.5th 1104, 1117.) But the Agreement here is not a wholesale waiver because it only waives representative claims. The Agreement is clear that the covered claims are to proceed on an individual basis only, and the waiver is therefore, not unlawful. (Burroughs Decl., Ex. B at ¶ 4.) (See *Valencia v. Mattress Firm, Inc.* (C.D. Cal. Feb. 16, 2023) C 22-06875 WHA, 2023 U.S. Dist. LEXIS 26863 at *8 [noting that the agreement did not operate as a wholesale waiver because “representative actions” referred to non-individual or class claims, allowing plaintiff to raise the individual portion of her PAGA claim]; see also *Martinez-Gonzalez v. Elkhorn*

Packing Co., LLC (N.D. Cal. 2022) 635 F.Supp.3d 883, 899 [“The waiver here is *not* a wholesale waiver of Plaintiff’s individual and representative PAGA rights; it only waives Plaintiff’s right to file a non-individual PAGA claim on behalf of other workers. Accordingly, the waiver provision her is not unlawful.”].)

Since the waiver is not unlawful, the Court need not consider its severability, but in any event notes that the Agreement contains a severability clause that is identical to that in *Viking River*, requiring the collective action to proceed in court should the waiver be found invalid. (Burroughs Decl., Ex. B at ¶ 4.) Defendant is, therefore, entitled to enforce the Agreement to the extent it requires Plaintiff to bring his individual PAGA claims in arbitration. And while Plaintiff does not bring any PAGA claims in this action, the Agreement is not substantively unconscionable in this regard (or at all).

Having carefully weighed all the relevant factors, circumstances, and terms of the Agreement, the Court finds that the Agreement is not substantively unconscionable.

As the Court finds that the Agreement is not procedurally unconscionable and is not substantively unconscionable, the Court rules that the agreement is not unconscionable. Accordingly, as the Court rules that the agreement is not unconscionable, Plaintiff’s unconscionability argument to avoid arbitration *required by this Agreement* fails.

Conclusion and Order

Defendant’s Motion to Compel Arbitration is **GRANTED** in its entirety. This civil action is **STAYED** in its entirety pending the outcome of this arbitration. (Code Civ. Proc. § 1281.4; 9 U.S.C. § 3.)

SO ORDERED.

Date: June 12, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 7

Case Name: *Calisha Bichko*
v.
Vic Web Radio LLC d/b/a Vic's Media Group, et al.

Case No.: 25CV473371

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Calisha Bichko (“Plaintiff”) moves under Code of Civil Procedure Section 437c for an Order granting summary judgment, or in the alternative, summary adjudication in Plaintiff’s favor on each of the Four Causes of Action in this civil action. Notice of Motion (the “Motion”) at 2:4–2.7 (filed Feb. 18, 2026). Plaintiff makes this Motion on the grounds that there is no triable issue of material fact and Plaintiff is entitled to judgment as a matter of law on the following causes of action in the Complaint filed by Plaintiff against Defendants Vic Web Radio LLC d/b/a Vic’s Media Group, and Victor Webster, an individual (collectively, “Defendants”):

Issue 1: Plaintiff’s First Cause of Action, alleging Breach of Contract, is subject to summary judgment or summary adjudication because there is no genuine issue of material fact and Plaintiff is entitled to judgment as a matter of law;

Issue 2: Plaintiff’s Second Cause of Action, alleging Promissory Fraud, is subject to summary judgment or summary adjudication because there is no genuine issue of material fact and Plaintiff is entitled to judgment as a matter of law;

Issue 3: Plaintiff’s Third Cause of Action, alleging violation of California Labor Code §§ 204, 210, 226, and 2802, is subject to summary judgment or summary adjudication because there is no genuine issue of material fact and Plaintiff is entitled to judgment as a matter of law; and

Issue 4: Plaintiff’s Fourth Cause of Action, alleging violation of California’s Business & Professions Code § 17200 *et seq.* is subject to summary judgment or summary adjudication because there is no genuine issue of material fact and Plaintiff is entitled to judgment as a matter of law.

Id. at 2:7–3:3.

The Motion came on for hearing on June 12, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.